

Equality, diversity and inclusion

1 . What they are

A workplace encouraging equality, diversity and inclusion can help:

- make it more successful
- keep employees happy and motivated
- prevent serious or legal issues arising, such as bullying, harassment and discrimination
- to better serve a diverse range of customers
- improve ideas and problem-solving
- attract and keep good staff

Equality

Equality in the workplace means equal job opportunities and fairness for employees and job applicants.

You must not treat people unfairly because of reasons protected by discrimination law ('protected characteristics'). For example, because of sex, age or race.

Find out more about:

- [discrimination and the Equality Act 2010](#)
- [preventing discrimination](#)

Diversity

Diversity is the range of people in your workforce. For example, this might mean people with different ages, religions, ethnicities, people with disabilities, and both men and women. It also means valuing those differences.

To avoid bullying, harassment or discrimination, you should make sure:

- your workforce and managers understand what is protected by discrimination law
- what's expected under discrimination law is actually happening in your workplace
- you make changes if what's expected is not happening, for example stepping up staff training
- your workforce and managers understand what the benefits can be of having a range of people with different backgrounds

Inclusion

An inclusive workplace means everyone feels valued at work. It lets all employees feel safe to:

- come up with different ideas

- raise issues and suggestions to managers, knowing this is encouraged
- try doing things differently to how they've been done before, with management approval

An inclusive workplace can help lower the risk of [bullying, harassment and discrimination](#).

2. Making your workplace inclusive

As an employer, you should take steps to make your workplace inclusive.

Having a workplace policy

A good start is to have a workplace policy covering equality, diversity and inclusion. This might also be called an 'equal opportunities policy'.

A policy helps everyone to know:

- the business supports and treats everyone fairly
- what kind of behaviour is expected of them
- about discrimination and the law, and what is not acceptable
- where to find the procedures for resolving any problems

Your policy could also point employees to any extra activities or services that your workplace offers, such as:

- staff networks
- employee assistance groups or programmes

When developing a policy, you should:

- consult with your employees and any representatives
- follow any existing consultations or arrangements with employees or their representatives
- make an action plan including what steps will be taken to make sure the policy is put into everyday practice

The action plan should include:

- how to get staff on board, for example training for all staff so they all understand the policy, and what needs to happen to make it work in practice
- how to best monitor and measure if the policy and plan are working as intended, and record those results
- how to work out if the policy is effective and what needs to change
- who will put the policy and plan into practice and by when

[Check equality, diversity and inclusion in your workplace](#)

[Use our equality, diversity and inclusion policy template](#)

Putting the policy into action

Employers, managers and employees should all understand the importance of equality, diversity and inclusion in all areas of work, including:

- recruiting new staff
- training and promoting existing staff

- equal pay
- religious beliefs and practice
- dress code
- unacceptable behaviour
- the dismissal of staff
- redundancy
- different types of leave for parents
- flexible working

If you run a small business

If you have a small business or organisation and feel you do not have enough resources to draw up and see through an action plan, you can still do what you can. For example, staff training.

Recruitment

When looking to hire new staff, you should advertise in at least 2 different places to reach a wide range of people from different backgrounds.

You can also promote your values as an equal opportunities employer and how you welcome applications from:

- anyone who believes they meet the essential requirements of the job
- anyone under-represented in the organisation – this is called [positive action](#)

For example, you might say that applications from qualified candidates with disabilities are welcome.

If you take positive action, you must be able to prove it's been reasonably thought through and does not discriminate against others.

You could get managers trained on skills that help them including:

- use the job description and person specification to choose the best applicants
- have an inclusive attitude
- avoid making decisions based on what they think or believe about a person because of their protected characteristics ([unconscious bias](#))

[Find out more about how to hire staff](#)

Training and development

Equality, diversity and inclusion should also have a place in the training, development and promotion of staff. This includes:

- training and development for employees and managers, for example, so staff have access to opportunities without prejudice because of a protected characteristic
- new staff inductions, for example, so everyone gets on board straight away with the equality, diversity and inclusion policy
- performance review processes and promotions, for example, so there are no questions about whether or not an employee fits in because of their protected characteristic

Training should show why it's important to value everyone's differences and how to do this.

Acas provides:

- [training on equality, diversity and inclusion](#)
- [free e-learning on equality, diversity and inclusion](#)

Employees should feel they can apply for more senior roles, regardless of a protected characteristic.

Equal pay

You should check regularly that all employees doing equal work have equal:

- pay
- benefits
- terms and conditions in their employment contracts

The equal pay law is aimed at equal pay for men and women doing equal work. But pay discrimination claims could be made for any protected characteristic, for example age, disability, race or religion.

[Find out more about equal pay](#)

Religion and philosophical belief

The law protects from discrimination, harassment and victimisation because of:

- religion
- philosophical belief
- not having a religion or a philosophical belief

You should make sure that all employees are treated fairly, regardless of their beliefs or lack of belief, and address any issues as soon as possible.

For example, you find out there's religiously offensive graffiti in the staff toilet. You should make sure it's removed as soon as possible and that the incident is thoroughly investigated and handled fairly.

You should also try to agree to employees' requests, where reasonable, for time off for religious festivals and to pray at work. Refusing a request for religious practice without a good business reason may be discrimination. This could also apply to other things such as dietary requirements.

[Find out more about religion or belief discrimination](#)

Dress code

You should check your workplace dress code does not discriminate against any protected characteristics.

Unacceptable behaviour

Your workplace policies and practices should make clear what counts as unacceptable behaviour at work.

You should follow full and fair [grievance and disciplinary procedures](#).

Dismissals

If you dismiss someone because of a protected characteristic, it could be discrimination and they could claim unfair dismissal at an employment tribunal.

If someone is bullied or harassed but you do nothing to stop it and they leave their job, they could claim constructive dismissal at an employment tribunal.

[Find out more about dismissals](#)

Redundancy

When selecting staff for redundancy, you should be careful to not make decisions affected by [unconscious bias](#) and protected characteristics.

[Find out more about selecting employees for redundancy](#)

Parents who are on leave

You should make sure employees do not miss out on job or training opportunities and are informed about any important matters and changes in their workplace. This includes those who are away from work because of:

- antenatal appointments
- pregnancy
- maternity leave
- paternity leave
- adoption leave
- shared parental leave
- caring for children

[Find out about time off for care and support](#)

Flexible working

Allowing employees flexible working where possible could avoid the risk of discrimination against an employee because of a protected characteristic.

For example, an employee might want to work flexibly because of:

- caring responsibilities
- health issues
- religious needs

[Find out more about flexible working](#)

Communication

Employees are more likely to get onboard with your organisation's purpose and values if they:

- feel valued
- are clear what the organisation's purpose and values are
- understand how they play a part in achieving your organisation's goals

You could help employees feel included in your organisation by:

- talking openly with them
- letting them know how the business is doing
- being clear about any changes, decisions or plans

You could also hold open (or 'town hall') meetings, where employees can meet and ask senior managers questions.

Leadership

You and any senior managers should be role models for inclusive behaviour.

It's good practice to:

- encourage everyone to have a more inclusive attitude
- give managers training that helps them see the importance of their role in shaping your workplace culture
- have an equality, diversity and inclusion champion at senior level who can speak up for under-represented groups and flag any issues that need addressing
- look out for signs of discrimination, inequality and exclusion, and address them as soon as possible

Promoting inclusive events and activities

You could also hold activities and events that encourage inclusion in the workplace, such as:

- Black History Month
- LGBT+ History Month
- Mental Health Awareness Week

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3. Unconscious bias

How a person thinks can depend on their life experiences. Sometimes they have beliefs and views about other people that might not be right or reasonable.

This is known as 'unconscious bias' and includes when a person thinks:

- better of someone because they believe they're alike
- less of someone because that person is different to them, for example, they might be of a different race, religion or age

This means they could make a decision influenced by false beliefs or assumptions.

Everyone can think in a way that involves unconscious bias at some point. It's important to be aware that bias could be affecting behaviour or decisions.

Apart from [in very limited circumstances allowed in law](#), employers and employees must not make decisions about job applicants or staff based on a protected characteristic. Doing so could lead to a discrimination claim to an employment tribunal.

Example of unconscious bias

A manager ignores an idea from a woman. The manager later accepts the same idea from a man. The manager does not realise they've done this until other people in the team point it out.

Ways to avoid unconscious bias

Ways to avoid unconscious bias at work include:

- being aware that everyone can be affected by unconscious bias without realising it
- advertising a job vacancy in at least 2 different places to reach a wide range of people from different backgrounds
- getting recruiting managers to tell each other if they notice any signs of being biased
- holding back some details on job application forms, such as the applicant's name or sex (this is called 'blind sifting'), that could affect recruiting managers' opinions
- at each stage, having more than one person sifting job applications, interviewing the applicants and deciding who gets the job
- allowing time to make decisions, for example on recruitment, promotions or grievance and disciplinary outcomes
- keeping a written record of why decisions were made

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4. Monitoring forms and surveys

To check equality, diversity and inclusion in your workplace, you can start by using the equality and diversity monitoring forms job applicants and employees have given you.

Small businesses might not be able to use these forms because they're not able to guarantee confidentiality. They could instead use an anonymous and voluntary staff survey.

You should then:

- analyse the information for any significant differences between groups based on protected characteristics
- carry out an investigation if something needs looking into

For example, you might carry out an investigation to find out:

- how employees really feel about a certain workplace policy
- if you're really recruiting and promoting people fairly
- if senior staff and managers are demonstrating the behaviours they expect of their staff

This could lead you to make changes to your equality, diversity and inclusion policy, its supporting action plan or a particular workplace practice.

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[/gender-pay-gap-reporting](#)

5. If employees feel excluded

If you find out that employees feel excluded, you, managers or HR managers can help them by:

- talking openly with them

- showing how their work is important to the organisation
- asking how they feel in their team, their work and the organisation as a whole
- seeing how you can help them

You might be able to easily address the reasons employees feel excluded.

If an employee does not agree with the values or workplace culture of your organisation, they might leave.

Holding exit interviews with employees who are leaving can:

- give the chance to find out if they're leaving because they felt excluded or held back in some way
- give you useful feedback on what you could change in the future

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